

this would prejudice him. The Court also notes that Plaintiff did not file a Reply to address any of Defendant's points.

Given the above, the Court finds that this factor weighs in favor of Defendant.

Summary and Conclusion

Weighing the *Doe* factors outlined above, the Court finds there is no basis to disqualify Ms. Woodruff as counsel for Defendant.

Plaintiff's Motion is **DENIED**.

10. 9:00 AM CASE NUMBER: MSC20-00271

CASE NAME: MENASCO VS KILARR

ATTORNEYS FEES MOTION FILED

FILED BY:

TENTATIVE RULING:

Parties to Appear.

11. 9:00 AM CASE NUMBER: MSN20-1173

CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER

AWARD OF REASONABLE ATTORNEY FEES AND COSTS

FILED BY:

TENTATIVE RULING:

Petitioner Tobias Lester ("Petitioner") filed a Motion for Award of Reasonable Attorneys' Fees and Costs on January 23, 2026 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$75,385.00 in attorneys' fees, with a 2.00 multiplier, for a total of \$145,520.00, plus \$2,535.93 in costs. The Motion for Fees and Costs was set for hearing on June 8, 2026. The Court *sua sponte* continued the matter from June 8, 2026 to August 31, 2026. The motion is opposed.

Background

This matter arises from a Petition for Writ of Mandate filed nearly six years ago in connection with a Petitioner's challenge to a proposed local ballot measure in Contra Costa County, Measure X, relating to a sale tax increase (the "Proposed Sales Tax Measure").

The petition was largely resolved at the time by a pair of Orders entered by the Court in August 2020. See Orders entered August 27, 2020. Those orders essentially granted relief on two matters: (1) that the proposed ballot measure question language "be amended by removing the phrase 'requiring fiscal accountability';" and (2) that the proposed impartial analysis language be amended by deleting a sentence ("State law authorizes Contra Costa County to adopt an ordinance proposing a one-half 20 of one percent (0.5%) sales tax."). As later stipulated, the latter assertion was a misstatement of the then existing law.

The Court notes that year ago, the Court rejected a proposed form of judgment, arguably having considered its two August 2020 orders constituting the judgment in the writ proceeding. See County of Contra Costa's Objection to Petitioner's Proposed Judgment filed June 29, 2021 and Clerk's